

Court No. - 21

Case :- WRIT - C No. - 27942 of 2024

Petitioner :- Mohammad Zubair

Respondent :- State Of Up And 6 Others

Counsel for Petitioner :- Anees Ahmad

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Learned counsel for the petitioner has not served the panel lawyer of the Electricity Department. He is permitted to serve the panel lawyer or to take steps by registered post to serve the respondents.

2. List after **two weeks**.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.8.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 27942 of 2024

Petitioner :- Mohammad Zubair

Respondent :- State Of Up And 6 Others

Counsel for Petitioner :- Anees Ahmad

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Sri N.K. Tiwari (A/N 0081/2012), learned counsel for respondent-Electricity Department prays for and is granted a week's time to obtain instructions.

2. List as fresh on 04.10.2024 showing his name as counsel for the respondent-Electricity Department.

Order Date :- 24.9.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 27942 of 2024

Petitioner :- Mohammad Zubair

Respondent :- State Of Up And 6 Others

Counsel for Petitioner :- Anees Ahmad

Counsel for Respondent :- Narendra Kumar Tiwari,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Anish Kumar Gupta,J.

1. The instant petition is directed against the notice of provisional assessment dated 30 May, 2024 under Section 126 of the Electricity Act, 2003 and Clause 6.8 and 8.1 of the Electricity Supply Code, 2005.
2. Sri N.K. Tiwari, learned counsel for the respondent - Electricity Department, has placed on record an order of final assessment dated 31.08.2024 and its copy has also been supplied to the counsel for the petitioner.
3. Since final assessment order has already been passed, therefore, the challenge to the notice of provisional assessment has been rendered infructuous.
4. The petition is disposed of with liberty to the petitioner to challenge the final assessment order, if aggrieved, in independent proceeding.

(Anish Kumar Gupta, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.10.2024

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